

The Libyan intervention and the limitations of R2P

The Responsibility to Protect (R2P) was adopted by the United Nations and stands as a norm to protect populations' human rights and security from mass atrocity crimes, including genocide, war crimes, ethnic cleansing, and crimes against humanity. Adopted in 2005, it operates within the framework of the UN Charter. The purpose of R2P is to provide a comprehensive framework for international cooperation in preventing and protecting populations from these crimes. The R2P framework identifies the ability of a state to protect its population and ensures that the international community assists the states in fulfilling this duty. If the state fails to protect its populations, R2P allows the international community to take collective action to prevent mass atrocity crimes. These interventions can take different shapes in order to tackle each scenario as thoroughly as possible. Diplomatic, humanitarian, and military interventions, as well as the use of sanctions or arms embargoes, are the most common responses. In this way, R2P serves as an essential tool for promoting international peace, stability, and the protection of human rights. This short paper will explore the role and function of R2P as an international organization, its successes and challenges, and the implications of its implementation for global governance and international relations by taking the example of the Libyan case.

February 2011 was a turning point for Libyan citizens as a popular uprising against president Muammar Qadhafi exacerbated the use of violence by the government. By requesting the

intervention of military forces to bring about order, the repression of the rebel forces and other opponents of the regime caused the death of more than 500 (as estimated by the Global Center for the responsibility to protect). On the 26th of February 2011, the United Nations passed resolution 1970 in response to the situation: the security council of the United Nations recalled “the Libyan authorities’ responsibility to protect its population”.

Later on, on the 17th of march of the same year, resolution 1973 authorized member states “to take all necessary measures [...] to protect civilians and civilian populated areas”. This resulted in a coordinated attack of the North Atlantic Treaty Organization (NATO) forces and, later, in the overthrowing and killing of Qadhafi. Nevertheless, there were multiple problems in the implementation of the responsibility to protect from this scenario. First of all, despite the original goal of the mission being to protect individuals from the violent civil war, they later shifted from merely protecting the population to forcing a regime change without clear authorization of the Security Council of the United Nations. Also, the lack of measures taken to rebuild the country after the events of 2011 resulted in restless conflict in the following years. According to some “, it is arguable that the abuses taking place now are worse than those that stimulated the 2011 intervention” (Paphitis 2019).

The Libyan intervention can hence be considered a failure as while the Security Council was able to act, NATO abused its mandate by making its own operation without coordinating with other

International Organizations. This issue could also be the cause of the unsuccessful stabilization of Libya after the events of 2011 and the further human rights abuses that resulted from it.

Regarding a rational choice approach to this problem, let's suppose that International Organizations are a set of rules negotiated among the international community that serves as a solution to the everlasting problem of international collective action. Even then, the example of Libya shows that what some see as resolving a conflict is, for others the cause of something even worse. Although the circumstances under which International Organizations can act are supposed to be defined through discussions involving any actor susceptible to being affected by these actions, the security council of the United Nations is an example showing that some states have more influence than others. Here, the sense of exceptionalism displayed by the winners of the Second World War and their implication in foreign affairs caused much blood to be spilled, something international law and institutions could prevent.

Another failure of the international system is shown through the Libyan case: the multiplication of decentralized international instances even among the United Nations (composed of 15 specialized agencies), leads to an increase of overlapping or contradictory policies. The intervention of NATO forces when the United Nations has a dedicated military detachment for similar events (the blue helmets) and member states closer to the area at risk.

Overall, the Libyan case has shown that despite official decisions taken for the genuine concern of the population's safety, mandating the NATO member states as the commissioners of resolution 1973 has put the UN in an ambiguous position as the interests of the Security Council members differ from the responsibility to protect.

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